

Jasleen Kaur Sidhu vs Shikhar Kacker on 9 September, 2022

Author: Alok Kumar Verma

Bench: Sharad Kumar Sharma, Alok Kumar Verma

Reserved Judgment

HIGH COURT OF UTTARAKHAND

AT NAINITAL

First Appeal No. 80 of 2022

Jasleen Kaur Sidhu

Vs.

Shikhar Kacker

With

... Appellant

... Respondent

Writ Petition (M/S) No. 3106 of 2019

Jasleen Kaur Sidhu

Vs.

Shikhar Kacker

... Petitioner

... Respondent

Advocates : Ms. Jasleen Kaur Sidhu, Appellant, in person

Mr. B.D. Pande, Advocate, for the respondent.

Coram : Hon'ble Sharad Kumar Sharma, J.

Hon'ble Alok Kumar Verma, J.

Reserved on : 29.07.2022 Delivered on : 09.09.2022 Per - Hon'ble Sharad Kumar Sharma, J.

The present First Appeal, which was initially registered as an Appeal from Order under Section 19 of the Family Courts Act, was later on permitted to be converted into a regular First Appeal, under the same provision, because of the implication of Section 19 of the Family Courts Act, itself which doesn't contemplate any provision or reference of an Appeal from Order, hence the same was accordingly registered as a regular First Appeal.

2. In this defendant's First Appeal under Section 19 of the Family Courts Act, the challenge, which has been given by the defendant, is to the impugned order dated 19th September 2019, which was passed by the Principal Judge, Family Court, in the pending Original Proceeding of Case No. 900 of 2016, Mr. Shikhar Kacker Vs. Jasleen Kaur Sidhu, whereby, in the pending proceedings under Section 13(1)(i-

a) of the Hindu Marriage Act, 1956, there was an application, which was preferred for the grant of interim pendente lite maintenance under Section 24 of the Hindu Marriage Act. The said application, which was preferred by the defendant, was numbered as paper No. 45A, which stood partly allowed, to a very limited extent to

the directions contained therein. Hence, the present First Appeal has been preferred for enhancement of the amount, as claimed for by the defendant-wife in her application paper No. 45A.

3. Brief facts, as it requires consideration and rather, which is not a disputed fact too between the parties to the proceedings, is that the parties to the present First Appeal got acquainted with each other, ever since prior in time i.e. since 31st December 2010, and owing to the intimacy which gradually got developed with the passage of time, later on admittedly the marriage was got solemnised between them according to the Sikh rites and rituals at Dehradun on 3rd March 2014. Hence, for all practical purposes, their matrimony and the consequential inter-se rights between the parties to the matrimony, would be governed by the provisions of the Hindu Marriage Act of 1956.

4. The facts, which are not disputed further is, that the appellant-wife herein, is a practicing Advocate, and at the relevant time when the appeal itself was instituted before the Registry of this Court on 30th September 2019, it was admitted by her that she, at the relevant point of time, was working as an Assistant Advocate General, in the office of Advocate General of High Court of Punjab and Haryana, at Chandigarh.

5. It is a case of the appellant, that after solemnization of their marriage on 3rd March 2014, the parties to the present First Appeal admittedly had stayed together at different places i.e. Dehradun, Nainital, Mumbai and such other different places, for different period of time and they had discharged their respective matrimonial obligations, as a consequence of which, a daughter namely Kavya Kacker was born out of the matrimony on 7th September 2015.

6. It is the case of the appellant, that during the initial years of the marriage, the parties to the proceedings, while they were in the process of taking a decision to relocate themselves to Mumbai and in order to establish themselves permanently, by engaging themselves as corporate lawyers, but, however, the respondent-husband, who was transferred to Mumbai, w.e.f. 15th March 2016, both the parties to the proceedings along with their minor daughter Kavya, shifted to Mumbai and started residing there.

7. The appellant has contended that their matrimonial relationship was initially being carried in a very sound mode and there was no misunderstanding ever as such, amongst themselves and even so much so, that often now and then being the daughter-in-law of the family of the respondent husband, she often used to visit the in-laws house at Dehradun, along with her minor daughter, but it is contended by the appellant that owing to the fact, that the mother of the respondent husband had sent the appellant and the minor daughter to Chandigarh. The appellant contends that she had visited the in-laws house on 14th April 2016 for performing various Hindu rituals, which were required to be performed on a birth of a child, in which the family members joined together including the present appellant and perform the required ceremony on 16th April 2016.

8. It is, at this stage, it is contended by the appellant, that when after the completion of the aforesaid customary rituals, when she called upon the respondent-husband, to take her back to Mumbai, where he was transferred and was working, she alleges that on 17th April 2016, the

respondent-husband, instead of taking the appellant with daughter to Mumbai along with himself had rather left them at Dehradun and returned back to Mumbai. She contended, that owing to the aforesaid peculiar circumstances, since she was left with the daughter and the respondent had gone back to Mumbai, to discharge his professional engagements/responsibilities, she along with the daughter had shifted to her parents' home at Chandigarh ever since 2016, and since then it is contended by the appellant that she has been maintaining herself and her daughter independently from her income, and her resources, which was accruing to her as a consequence of her admitted engagement as an Assistant Advocate General, in the office of Advocate General of High Court of Punjab and Haryana at Chandigarh.

9. She contends that ever since 2016, gradually the crevices of misunderstanding, started widening amongst them owing to the fact that despite the admitted fact, that respondent husband was the father of the daughter, but it was alleged by the appellant that he failed to discharge his obligations of maintaining the appellant, as well as the minor daughter, and not even a single penny, is alleged to have been paid by the respondent husband ever since they have last resided together on 19th June 2016.

10. The appellant has developed a case, that ever since April 2016 till November 2016, she has been consistently making various attempts to get into touch with the respondent husband and to sustain the matrimonial relationship, but all her efforts are alleged to have ended into a futility and in vain. She submitted, that ever since 17th April 2016, when the respondent husband had left for Mumbai, there had been no establishment of matrimonial relationship amongst themselves, because the respondent had voluntarily not visited the appellant's house, nor had made any attempts to retrieve or revive the family relationship.

11. The case of the appellant was, that though without a fact or there being the grounds of misunderstanding between the parties, having been disclosed to her by the respondent husband, the respondent, on his own, on 3rd November 2016, is said to have instituted a petition under Section 13(1)(i-a) of the Hindu Marriage Act, by filing the same before the Court of learned Family Court, Dehradun, seeking dissolution of marriage, which was solemnized between them on 3rd March 2014.

12. On institution of the aforesaid proceedings under Section 13 of the Hindu Marriage Act, though there had been various set of allegations to bring the proceedings within the ambit of Section 13 of the Hindu Marriage Act, which at this stage, may not be of any concern for consideration by this Court at the stage, when it is exclusively considering the application or an issue arising from the payment of pendente lite maintenance, in a pending principal proceedings under Section 13 of the Hindu Marriage Act. Hence, it is being avoided to be ventured into by this Court, to venture into on its merit.

13. On institution of the aforesaid proceedings, under Section 13 of the Hindu Marriage Act on 3rd November 2016, the various efforts for conciliation was made at different stages, by the learned Family Court, Dehradun, but all the efforts made for conciliation on 22nd December 2016, failed and ultimately the Court had fixed the date for filing of the written statement and framing of the

issues, in order to decide the issue inter se between them on its own merit.

14. The appellant contended that ever since 2016, she has been residing in Chandigarh in her parents home, along with her minor daughter, and as the proceedings under Section 13 of the Hindu Marriage Act, has been instituted before the learned Family Court, Dehradun, it is causing an extreme inconvenience to her, hence she had filed a Transfer Petition, being Civil Petition No. 1070 of 2017 before The Hon'ble Apex Court, seeking transfer of the Matrimonial Case No. 900 of 2016 from Dehradun to Chandigarh.

15. The aforesaid proceedings of transfer, was registered before the Hon'ble Apex Court as Transfer Petition (C) No. 1070 of 2017, and the same was disposed of by the Hon'ble Apex Court, vide its order dated 17th July 2017. In the observation, which has been made by the Hon'ble Apex Court, while disposing of the Transfer Application, vide its judgment dated 17th July 2017, had observed, that the parties to the proceedings can participate in the proceedings through video conferencing and it was left open to the parties also to raise an independent claim for meeting up the expenditures towards her travelling, in order to enable her and facilitate to participate in the Court proceedings at Dehradun, but, however, later on the Hon'ble Apex Court in the Transfer Application No. 517 of 2018, Smt. Jasleen Kaur Sidhu Vs. Shekhar Kacker, vide its judgement dated 16th April 2019, dismissed the Transfer Petition as withdrawn.

16. On revival of the proceedings, the learned Family Court, Dehradun, had made yet another effort for conciliation vide its order dated 22nd September 2017, when the matter was referred to Mediation and Conciliation Centre, and the parties were directed to appear on 13th October 2017. The parties did appear, but the appellant again alleges, that though there was a tacit denial between the parties to enter into any mediation or settlement of a dispute between them, but she contends that she never left any stone un-turned to get the controversy resolved and hence she moved yet another application before the District Legal Service Authority, for making an effort of mediation, but no mediation, as such, could be succeeded to be entered into on the next date fixed i.e. on 9th November 2017. However, vide order dated 13th November 2017, it was contended that the matter was yet again referred for mediation on the report; for change of the mediator by the District Legal Service Authority, and the parties were directed to appear on 23rd November 2017, but despite all the efforts, being made including the efforts contemplated under Section 23 (2) of the Hindu Marriage Act to reconcile their matrimonial dispute by the interference of the Family Court itself, to reconcile it looking to the wider interest of the child, but admittedly, no logical end could be arrived at between the parties to the proceedings of the conciliation, which was consistently held by the learned Family Court, Dehradun. As a result thereto, the principal proceedings under Section 13 of the Hindu Marriage Act, which was registered as Case No. 900 of 2016, had to be proceeded on its own merits.

17. The provision of Section 24 of the Hindu Marriage Act deals with a provision for the purposes of remittance of maintenance pendente lite subject to satisfying of the conditions, which have been provided therein under the provision. Section 24 of the Hindu Marriage Act, is extracted hereunder:-

"24 Maintenance pendente lite and expenses of proceedings. Where in any proceeding under this Act it appears to the court that either the wife or the husband, as the case may be, has no independent income sufficient for her or his support and the necessary expenses of the proceeding, it may, on the application of the wife or the husband, order the respondent to pay to the petitioner the expenses of the proceeding, and monthly during the proceeding such sum as, having regard to the petitioner's own income and the income of the respondent, it may seem to the court to be reasonable:

[Provided that the application for the payment of the expenses of the proceeding and such monthly sum during the proceeding, shall, as far as possible, be disposed of within sixty days from the date of service of notice on the wife or the husband, as the case may be.]

18. On its simpliciter reading of the previous proceedings, which were held, we are of the tentative opinion, that either of the parties to the proceedings under the Act, when he or she is able to succeed to establish by evidences of having no independent source of income sufficient enough to sustain herself or to support the expense as per her expected standard of living, which is to be involved in the litigation, the Court may, by a judicial determination, after considering the rival contentions, can determine the quantification of maintenance to be paid to the applicant of an application under Section 24 of the Hindu Marriage Act.

19. The issue, which will be of much concern in the present First Appeal for us would be the effect of proviso to Section 24 of the Hindu Marriage Act, which has to be read in harmony with the principal provision contained Section 24 of the Hindu Marriage Act, with regard to the effect of the liability of maintaining to be fastened and for payment of pendente lite maintenance, by way of an interim measure, as contemplated under the said Act.

20. Consequently, the appellant had filed an application before the learned Judge, Family Court on 1st June 2018, which was numbered as paper No. 45A, praying for grant of interim maintenance to the appellant in order to maintain herself and her daughter and the grounds, which have been expressed therein, though in para 1 of the said application, she has admitted the fact, that she is working as an Assistant Advocate General, in the office of the Advocate General of Punjab and Haryana High Court, at Chandigarh, but she contended that the professional emoluments, which has been received by her, were not sufficient enough, to meet up the expected standard of living and to meet out the bare necessities of her minor daughter Kavya, and owing to the fact of her growing age, she has had to be suitably maintained and nurtured so as to provided with the proper academic facility, so that she may grow-up in a congenial environment and to have a sound educational background.

21. The appellant further submitted in her application, that despite various orders passed by the learned Family Court for making an effort for conciliation, though she had consistently participated in the proceedings, but since she had to travel to and fro from her present place of residence i.e. from Chandigarh to Dehradun, she has to meet up the additional travelling expenses, which are

falling heavily on her coffers.

22. She submitted that under the settled principles of law, a husband is liable to maintain the wife, as well as the child, who had taken birth as a consequence of the marriage and matrimonial relationships.

23. In order to justify the contents of the application, and in order to show the sustainability aspect by the respondent to the proceedings before the Court below, and, to pay the amount of pendente lite maintenance, she contended that at the stage, when prior to shifting of the family to Mumbai, when the parties to the Appeal were residing in Delhi, the respondent husband had joined a very renowned and respected Law Firm and he had sufficient sources, which would be parted of by him in order to sustain the wife and the child.

24. She submitted, that owing to the nature of office, in which the respondent had joined, it is one of the most reckoned eminent law office and the income, which was accruing to him, was assessed by her as to be Rs. 5 to 7 lakh per month, along with the alleged other perks and bonus, which she contends, that was being received by the respondent husband.

25. The appellant, in the application filed under the proviso to Section 24 of the Hindu Marriage Act, has assessed the minimum expenditure, which she has to incur for travelling from Chandigarh to Dehradun, as to be Rs. 10,000/- per trip, which she contends, that she would be otherwise entitled to receive from the respondent husband.

26. She further submits that despite the fact that the respondent husband was having a very handsome package of his engagement in Bombay Law Firm, but with an ulterior motive, it is alleged by the appellant, that the respondent had opted out to stay at Dehradun, and was having a sufficient earning from his engagements in Dehradun. Hence, in a nutshell, if the application itself is taken into consideration, the appellant, in her application dated 1st June 2018, had prayed for the following reliefs:-

"Hence it is humbly prayed that the petitioner be directed to pay minimum sum of Rs. 1 lac per month to applicant as well as to minor daughter besides litigation expenses which this Hon'ble Court may deem fit, besides minimum sum of Rs. 10,000/- for each visit reckonable w.e.f. JULY 2017 after the order of the Hon'ble Supreme Court of India by which the petitioner was"

27. The application preferred by the appellant under the proviso to Section 24 of Hindu Marriage Act, for the grant of pendente lite maintenance was further supported by yet another affidavit which was got filed by the applicant on 1st June 2018 itself, by placing on record the income-tax returns for the respondent Assessment Years 2011-12, 2012-13, 2013-14, 2014-15, 2015-16 and 2016-17, along with her self-computation/assessment chart, and the appointment letter, the lease deed of House No. 271, Kohenoor City, West-Mumbai, and the statement of the bank accounts, maintained at the Mumbai branch.

28. During the pendency of the application, apart from filing of the aforesaid affidavit, the appellant also filed an application under Order 11 Rule 12 to be read with Section 151 of the CPC; for the purposes of opposing the objection, which was filed by the respondent husband i.e. paper No. 46, to the application filed by the appellant under Section 24 of the Hindu Marriage Act.

29. Principally, the ground, which has been taken by the respondent, in his objection, which was filed before the learned family Court, as against the application of the appellant, under Section 24 of the Hindu Marriage Act, for the grant of pendente lite maintenance, the respondent has laid down various contentions, in the following manner:-

(i) That the consideration of an application for pendente lite maintenance, could only be subject to the condition, that the applicant herself is not having a sufficient means of earning, to sustain herself.

(ii) When admittedly, as per the applicant, herself when she was already engaged as an Assistant Advocate General in the office of the Advocate General of Punjab and Haryana High Court since September 2013, i.e. prior to their marriage, the respondent husband contended that the appellant wife was earning of a remuneration of about Rs. 75000/- per month, and that was sufficient enough to sustain herself along with their daughter, and in support thereto, he had also placed the document on record by way of separate list of documents.

(iii) The respondent opposed the application of the appellant that since the appellant is a qualified legal professional, having graduated from prestigious educational institution and has been working as an Assistant Advocate General, and prior to the said engagement, when she was the counsel in the chambers of Mr. Siddhartha Luthra, the Senior Advocate, at New Delhi, there too she had sufficient substantial stipend, which was paid to her.

(iv) Owing to her professional calibre, and the status of her engagement, she also had a good clientage and had sufficient professional income accruing to her, which was attempted to be substantiated by the respondent on the ground, that while her stay at Chandigarh, she was already availing various luxurious amenities of being the member of one of the most prestigious Golf Club of Chandigarh.

(v) Respondent submitted that when a wife, has on her own volition and has chosen to live separately and is having an independent living and income, her application under Section 24 of the Hindu Marriage Act, would not be sustainable and that deserves to be rejected.

30. In response to it, the appellant has given the details of the immovable asset, which she contends, that the respondent was having, in order to show his financial viability to meet the maintenance amount as it was claimed in the application.

31. Particularly, in response to the contents of the application under Section 24 of the Hindu Marriage Act, the respondent, in his objection, which was filed on 9th July 2018, in para 3, had quit elaborately denied the allegations pertaining to the financial asset, which was said to have been under the ownership of the respondent, in order to deny the averments made in the application under Section 24 of the Hindu Marriage Act for the grant of pendente lite maintenance.

32. A very interesting argument which was extended by the respondent in his objection, that in fact, it was the appellant, who was delaying the proceedings, and has been using all tactics by filing frivolous applications, which has forced the respondent to file an application to close her opportunity to file written statement. The aforesaid application based on the material, which was placed along with the application under Section 24 of the Hindu Marriage Act, by the appellant and the material which had been placed by the respondent in his objection to Section 24, application came up for consideration before the Judge, Family Court, who by the impugned judgement had only partly allowed the application, so far it pertained to meeting up her travelling expenditures from Chandigarh to Dehradun and the learned family Court has issued the following directions:-

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33. While pressing her contentions, as against the impugned order dated 19th September 2019, the appellant had contended, that the learned Family Court has erred at law, and there was gross failure and miscarriage of justice, as the entire material which was placed on record, filed along with the application by the appellant and owing to the fact, that there was an evasive denial in the objection which was filed by the respondent, the same ought to be taken into consideration, based on the face, to be accepted to be corrected in view of the provisions contained under Order 8 Rule 3 and 5 to be read with Section 10 of the Family Courts Act.

34. The appellant further contended that when the application under Section 24 of the Hindu Marriage Act, being paper No. 44A, itself was being considered and the appellant had sought a direction to the respondent to furnish the income-tax returns for the Financial Years 2011 to 2017, the Appointment Letter, the Bank Account Statement etc., having not passed any orders on the same for discovery of the documents, impugned order of rejecting the application would be vitiated.

35. She further submitted in the grounds, thus taken by her particularly, the reference may be had to ground (i) and (j), which has been argued by the appellant, in-person, that her engagement and continuance as an Assistant Advocate General, could not be a detrimental factor, which could be taken as to be a decisive in nature for the purposes of deciding the application under Section 24, because she contended that her appointment as an Assistant Advocate General, for all practical purposes, would be treated as to be a temporary, holding of a post and based on her aforesaid engagement, the application for pendente lite maintenance, cannot be rejected.

36. Further, in support of her contentions on the basis of ground (j), she attempted to interpret the use of word "sufficient", as it has been provided under Section 24 of the Hindu Marriage Act, which was a factor according to her was required to be taken into consideration, for the purposes of determining the maintenance pendente lite, the words "sufficiency of income" under Section 24 of the Hindu Marriage Act, would rather be an abstract term, because the aspect of sufficiency of income, would always depend upon the evidentiary value to be adduced by the respective parties, leading their evidences, either in support or in contravention to the defence stand taken, by in defence, which could have facilitated the Court, to decide as to under the given set of circumstances in the instant case, whether at all, what would be the exact sufficiency of income for either of the parties.

37. In fact, the judgement of the Karnataka High Court, as reported in AIR 2002 Karnataka 24, Smt. Padmavathi And Ors. vs C. Lakshminarayana, it had rather laid down, that while considering the principal application under Section 24 of the Hindu Marriage Act, the Court is required to take a holistic view, taking into consideration the aspect of income of the parties, before deciding the issue of quantification of income and its entitlement to meet the financial need of sustainability.

38. This Court has deliberately used the word "sustainability", for the reason being, that under Section 24 of the Hindu Marriage Act, where it uses the word "maintenance", the "maintenance" herein, would have to be logically interpreted as to be not to be an alternative forum of an independent income, but rather only a support system, to sustain a person or a party to the proceedings, under matrimonial litigation subject to the condition, that she or he succeeds to establish beyond doubt by evidence, that there is no sufficiency of income, which as per the opinion of this Court, was not available for the reason being, that there was no specific denial by the appellant about the objection taken by the respondent husband, about her engagement as an Assistant Advocate General and the income accruing to her, as to be an amount of Rs. 75000/- per month, apart from her engagement in a renowned law firm of from where she was also having a sufficient clientage, which was adding up to her income.

39. The aspect of entitlement of maintenance during the pendency of principal divorce proceedings, though as per the dictum of the Madras High Court, as reported in AIR 2003 Madras 212, Manokaran @ Ramamoorthy Vs. M. Devaki, though it has been held that it is always a wife's prerogative to establish, that she has got no sufficient income for her support and that she can claim for maintenance, but her entitlement would always be dependent upon the establishment of the fact of her insufficiency of income for maintenance.

40. The provisions under Section 24 of the Hindu Marriage Act, which provides for a financial support to be given to the non earning spouse, in favour of a non earning spouse during the pendency of the proceedings of the Court, an application for the grant of pendente lite maintenance, would definitely depend upon the establishment of fact beyond doubt, of the lack of source of income for sustainability by the person, who is the applicant under Section 24 of the Hindu Marriage Act.

41. Reverting back to the present case, if the impugned order itself is scrutinized, which has been put to challenge on various grounds or the grounds, which have been dealt with above, and apart from various other grounds taken in the Memorandum of Appeal itself, if the logic, which has been assigned by the learned Family Court while considering the application paper No. 45A, filed under Section 24 of Hindu Marriage Act, the Court after due deliberation and considering the pleadings which were raised in the objection paper No. 48A, and the application filed by the appellant i.e. paper No. 45A and the objection to it i.e. paper No. 46A, the issue was raised, by the respondent husband about the maintainability of an application, owing to the already reckoned and admitted earning of the appellant-wife.

42. The Court did considered the impact of the fact, which was placed on record by way of paper No. 45A, with regard to the immovable assets, which are said to have been in possession of the husband respondent, under his title, but the Court, while considering the application and the rival contentions pertaining to the "sufficient means", as envisaged under Section 24 of the Hindu Marriage Act, has observed that the maintenance pendente lite under Section 24 of the Act, there is a precondition which is required to be satisfied by the applicant that the applicant to the application for pendente lite maintenance is not having any income, as such, to sustain herself or himself. But, here under the facts of the instant case, when it is an admitted case of the appellant-wife, about her income accruing to her due to her professional engagements, the Court has observed, that on the perusal of the application for pendente lite maintenance, the necessary ingredients, which are required to be satisfied, were not established by her by any evidence to the contrary.

43. The learned Family Court, while passing the impugned order has assigned its logic on the basis of the judicial precedent, as reported in AIR 1997 Supreme Court 3397, Smt. Jasbir Kaur Sehgal Vs. District Judge, Dehradun and others wherein it was observed that since plaintiff/applicant herself has attempted to portray that she was not having any income, but though in the affidavit filed in support thereof wherein she has admitted that she was already engaged and was having an income of about Rs. 8000/- per month. The Court has observed that this admission of fact of engagement will itself amount to, that the applicant was having a sufficient income to sustain herself. The Court has observed that particularly when it is an admitted case of the applicant, about the income accruing to her, no detailed scrutiny was required to be undergone by the learned Family Court and that too at the stage of considering the application for pendente lite maintenance, when the effect of 'sufficiency of income', of either of the parties itself is established by the admitted pleadings, which were placed on record even it could have been a futile exercise, over and above the admitted case. Thus, the Court has rightly observed that she was not entitled for any maintenance, as such, because the sufficiency of an income, accruing to her was a fact, which stood established by evidence and the very admitted case of the appellant herself.

44. But taking a pragmatic view, the learned Family Court has observed that in order to patch-up the burden of expenditures, which the appellant is likely to incur, for her to and fro journey from Chandigarh to Dehradun, to participate in the proceedings before the Court below, a maintenance of Rs. 5000/-, was directed to be paid to the appellant wife by the respondent husband.

45. There are various contentions and rival contentions, which have been raised by the parties to the present proceedings. But, during the course of hearing of this Appeal, an additional fact was brought to the knowledge of the Court, that the opportunity to file written statement to the appellant has lapsed, because of the expiry of six month period, this Court has passed an order dated 4th July 2022, while considering the application for the grant of extension of the interim order and had made the following observations:-

"The concern expressed by the appellant herein, is that in the absence of the extension of the interim order, the principal proceedings before the learned family Court, are being carried, and her opportunity to file written statement has been closed.

In order to resolve the controversy, which is emanating from a social legislation, the time period, as granted by the Court below for filing of the written statement is hereby extended by a further period of two weeks. The appellant will ensure to file her written statement within a period of two weeks from today, cost imposed for delayed filing of written statement by an order dated 01.06.2022, would stand waived off.

In the proceedings which are to be conducted by the learned Principal Judge/Family Court, Dehradun, of O.S. No. 900 of 2016, Shikhar Kacker Vs. Jasleen Kaur Sidhu, parties to the present First Appeal would ensure to lead their respective evidences, in support of their cases, and the matter would be decided by Principal Judge, Family Court, Dehradun, as expeditiously as possible, but not later than six months from the date of production of the certified copy of this judgment. However, the learned Principal Judge, Family Court will not pronounce the judgment, except with the prior leave of the Court."

46. In fact, by the said order dated 4th July 2022, we had taken into consideration the social impact of the legislation and its intention behind it, and had permitted the appellant to file her written statement, within a period of two weeks. However, the cost, which was imposed by the learned Court below, while permitting to file written statement vide its judgement of 1st June, 2022, was directed to be waived off. Thereafter, proceeding was taken on number of occasions. Ultimately, when it culminated on 29th July 2022, it was a date on which the respondent himself had very candidly placed a document dated 4th May 2022, with a prior copy of it being served upon the appellant. Where, it shows that the respondent husband was later on engaged by Khaitan & Company Ltd., which was a registered Law Firm, located at Noida, Uttar Pradesh, and as per the aforesaid document, which has been placed on record by the respondent/husband himself, it is an admitted case of the respondent, that he has been engaged therein, by the aforesaid company as a 'retainer' holding a designation of a 'counsel', with a monthly remuneration payable, to him to the tune of Rs. 3,50,000/- per month.

47. Since this document itself, was placed on record by the respondent husband, owing to the allegation, which has occurred during the course of the argument, as it has been argued by the

appellant, that later the respondent was engaged with M/s Khaitan & Company Ltd., would be a fact, which now stands admitted by both the parties, but simultaneously, being conscious of the fact, that the evidence has not been proved to the contrary; that the appellant was not having any independent income, owing to the documents which were placed on record and were considered by the Court.

48. In order to balance the equities and particularly, with a sole objective, that a lis has to be brought to a logical end and it should not be kept lingering, at an interlocutory stage, we are of the view that the equities could be balanced, owing to the admitted case of the parties by modifying the impugned judgement dated 19th September 2019, to the effect that owing to the income, which has now been admitted by the respondent husband to be accruing to him, due to his later engagement in M/s Khaitan & Company Ltd., from where, he is having an income of Rs. 3,50,000/- per month, it would be apt, that an amount of Rs. 50,000/-, may be directed to be remitted to the appellant-wife, by the respondent-husband by 10th of each month, as to be an amount, which would be a maintenance pendente lite, to be paid to the appellant, in order to meet up the expenditure of sustainability of the daughter, who is admittedly residing with the appellant.

49. The direction for remittance of the amount of Rs. 50,000/- per month, as directed above, would be over and above the amount of travelling expenses, which has already been settled to be by the learned Family Court, Dehradun by the impugned order, while considering the application under Section 24 of the Hindu Marriage Act.

50. Subject to the aforesaid, and the modification of the impugned judgment, the First Appeal would stand partly allowed.

51. So far as the Writ Petition (M/S) No. 3106 of 2019, Smt. Jasleen Kaur Sidhu Vs. Shikhar Kacker is concerned, where a challenge has been given to the impugned order dated 19th September 2019, so far it relates to rejecting the application paper No. 44A, since being a writ petition under Article 227 of the Constitution of India, the same is de-linked from the present First Appeal, and would be laid before the regular Court, ceased with the jurisdiction under Article 227 of the Constitution of India, which is to be decided independently. However, while parting with the judgement, this Court feels it apt, to observe that whatsoever reasoning we have assigned in the above judgement, is only tentative in nature, exclusively for the purposes of deciding the application of pendente lite maintenance, which may not have any bearing on the decision, to be taken on the application under Section 24 of the Hindu Marriage Act finally on its merits, which has to be decided by the learned Family Court, on its own merits.

(Alok Kumar Verma, J.) (Sharad Kumar Sharma, J.) 09.09.2022 Mahinder/